

STATE OF NEW YORK

8009--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. CANZONERI-FITZPATRICK -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the village of Malverne to alienate and discontinue the use of certain parklands

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the village of
2 Malverne, located in the county of Nassau, acting by and through its
3 governing body and upon such terms and conditions as determined by such
4 body, is hereby authorized to discontinue as parklands and alienate the
5 lands more particularly described in section three of this act, and to
6 sell and convey such lands at fair market value, for the purpose of
7 constructing housing.

8 § 2. The authorization provided in section one of this act shall be
9 effective only upon the condition that the village of Malverne, county
10 of Nassau, dedicate an amount equal to or greater than the fair market
11 value of the parklands being discontinued toward the acquisition of new
12 parklands and/or capital improvements to existing property for park and
13 recreational use.

14 § 3. The parklands authorized by section one of this act to be alien-
15 ated are described as follows:

16 All that certain plot, piece or parcel of land, with the buildings and
17 improvements thereon erected, situate, lying and being in the Incorpo-
18 rated Village of Malverne, County of Nassau and State of New York, known
19 and designated as Lots 114 and 115 on a certain map entitled "Map of
20 Malverne Plaza situated in the Incorporated Village of Malverne, Nassau
21 County, N.Y. January, 1927, owned and developed by McGolrick Realty Co.,
22 Inc." filed in the Office of the Clerk of the County of Nassau January

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13090-05-5

1 19, 1927, as Map No. 847, New No. 2491, bounded and described as
2 follows:

3 BEGINNING at a point on the northerly side of Church Street distant
4 1034.50 feet westerly from the corner formed by the intersection of the
5 northerly side of Church Street and the new westerly side of Ocean
6 Avenue, which point of beginning is also the division line between Lots
7 115 and 116 on the aforesaid map; running thence South 63 degrees 58
8 minutes West 40 feet along the northerly side of Church Street; running
9 thence North 26 degrees 02 minutes West 100 feet; thence North 63
10 degrees 58 minutes East 40 feet to the division line between Lots 115
11 and 116 on aforesaid map; running thence along last mentioned division
12 line South 26 degrees 02 minutes East 100 feet to the northerly side of
13 Church Street at the point or place of BEGINNING, consisting of 0.095
14 acres, more or less.

15 § 4. In the event that the village of Malverne received any funding
16 support or assistance from the federal government for the purchase,
17 maintenance or improvement of the parklands set forth in section three
18 of this act, the discontinuance and alienation of such parkland author-
19 ized by the provisions of this act shall not occur until the village of
20 Malverne has complied with any federal requirements pertaining to the
21 alienation or conversion of parklands, including satisfying the secre-
22 tary of the interior that the alienation or conversion complies with all
23 conditions which the secretary of the interior deems necessary to ensure
24 the substitution of other lands shall be equivalent in fair market value
25 and usefulness to the lands being alienated or converted.

26 § 5. This act shall take effect immediately.